

26NWCV01274 26NWCV01274

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Case Number: 26NWCV01274 Hearing Date: June 29, 2026 Dept: SED

LATASHA MYLES V. RAISING

CANE'S USA, LLC, ET AL.

CASE NO.: 26NWCV01274

HEARING: 06/29/2026 @ 9:30 a.m.

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TENTATIVE ORDER

Defendant Glenn Curro's unopposed
demurrer is SUSTAINED AND OVERRULED IN PART.

Defendant Glenn Curro shall
file and serve an Answer within 30 days of this order.

Moving party to give notice.

Defendant Glenn Curro (Curro)
demurs to the second and third causes of action of the Complaint filed by Plaintiff
Latasha Myles. (Plaintiff).

Background

On April 10, 2026, Plaintiff
filed the operative Complaint against Defendants Raising Cane's USA, LLC, Curro,
and Does 1 through 10, inclusive (collectively, Defendants) asserting three

causes of action: (1) Negligence; (2) Premises Liability; and (3) Negligent Hiring, Supervision, or Retention of Employee.

Plaintiff alleges she slipped and fell on a damaged and/or slippery entry rug at Raising Cane's due to Defendants' negligent maintenance, failure to warn, and unsafe premises conditions. She further alleges Defendants failed to properly hire, train, and supervise employees responsible for safety, leading to her injuries.

No opposition has been filed.

Legal Standard

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. *z* (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Plaintiff is only required to allege ultimate facts, not evidentiary facts.

(See *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 212 ["the complaint should set forth the ultimate facts constituting the cause of action, not the evidence by which plaintiff proposes to prove those facts"]; 1 Cal. Affirmative Def. § 10:2 (2d ed.) [allegations of agency, course and scope of employment, etc. qualify as ultimate facts].) Plaintiff's allegations must be accepted as true on demurrer. (See *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924 ["For purposes of reviewing a demurrer, we accept the truth of material facts properly pleaded in the operative complaint"].)

Meet and Confer

Code of Civil Procedure section 430.41, subdivision (a) requires the moving party to meet and confer "in person, by video conference, or by telephone" in an attempt to resolve a demurrer's deficiencies five days before the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).)

The Court finds that Curro has fulfilled the meet and confer requirement.

Analysis

Second

Cause of Action

Curro argues that Plaintiff's cause of action for premises liability with respect to Curro fails because, as general manager of the Raising Cane's location where the incident took place (Subject Location), he does not own the Subject Location or have any control over the premises. (Motion p. 3.) Additionally, Plaintiff's Complaint does not establish facts that show how Curro had knowledge of the alleged dangerous condition. (Id. at p. 4.)

The elements of a cause of action

for premises liability are the same as those for negligence: duty, breach, causation, and damages. (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property to avoid exposing others to an unreasonable risk of harm. (*Annocki v. Peterson Enterprises, LLC* (2014) 232 Cal.App.4th 32, 37 (*Annocki*).) If a dangerous condition exists, the property

owner is "under a duty to exercise ordinary care either to make the condition reasonably safe for [customers'] their use or to give a warning adequate to enable them to avoid the harm." (Bridgman v. Safeway Stores, Inc. (1960) 53 Cal.2d 443, 446.) The existence and scope of a property owner's duty are legal questions for the court. (Annocki, supra, 232 Cal.App.4th at 36.)

Because a duty of care extends to those who own, possess, or control property, ownership is not the sole basis for liability. Here, the Complaint alleges that Curro was the manager of the Subject Location and exercised authority over its operation and safety. (Complaint ¶¶ 5, 8.) These allegations are sufficient to plead that Curro possessed or controlled the premises and therefore owed Plaintiff a duty of ordinary care.

The Complaint also sufficiently alleges breach. Specifically, Plaintiff alleges that Defendants, including Curro, knew or should have known that the damaged and/or slippery entry rug posed a substantial risk of harm and failed to repair the condition or provide adequate warning. (Complaint ¶¶ 9, 40-42.) At the pleading stage, these allegations are sufficient to plead actual or constructive notice.

Finally, the Complaint sufficiently alleges causation because it alleges Plaintiff tripped and fell to Defendants' failure to repair or warn of the damaged and/or slippery entry rug. (Complaint ¶ 41.)

Accordingly, the Complaint sufficiently states a cause of action for premises liability.

The demurrer to Plaintiff's second cause of action is OVERRULED.

Third
Cause of Action: Negligent Hiring, Supervision, or Retention

Curro argues that Plaintiff improperly alleges a cause of action for negligent hiring, training, and supervision against Curro because Curro, in his capacity as a general manager and therefore an employee of Defendant Raising Cane's, cannot possibly be liable under such a theory of liability as the theory is reserved for

employers, not employees. (Motion p. 4.)

The necessary elements for negligent hiring are: (1) that the employer hired the employee; (2) who was incompetent or unfit; (3) that the employer had reason to believe undue risk of harm would exist because of the employment; and (4) that harm occurred. (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1213-1214.)

Here, although the Complaint alleges in a conclusory fashion that "Defendants" employed, retained, supervised, trained, and controlled employees responsible for customer safety, it does not allege facts showing that Curro, individually, hired or retained any employee, or that he possessed the authority to do so. (Complaint ¶¶ 46-50.) Nor does the Complaint allege that any employee was incompetent or unfit, or that Curro knew or had reason to know that employing or retaining a particular employee created an undue risk of harm. Instead, the allegations consist of generalized conclusions asserted collectively against all Defendants.

These allegations are insufficient to state a cause of action for negligent hiring, supervision, or retention against Curro.

Plaintiff did not file a timely opposition to the demurrer. Accordingly, the Court finds that Plaintiff has not met her burden of demonstrating a reasonable possibility that the Complaint can be amended to state a viable cause of action. (See Shaeffer v. Califia Farms, LLC (2020) 44 Cal.App.5th 1125, 1145.)

The demurrer to Plaintiff's third cause of action against Curro is SUSTAINED WITHOUT LEAVE TO AMEND.

Conclusion

Based on the foregoing, Defendant Glenn Curro's unopposed demurrer is SUSTAINED IN PART AND OVERRULED IN PART.

The Court OVERRULES Defendant Glenn Curro's demurrer to Plaintiff Latasha Myles's second cause of action.

The Court SUSTAINS WITHOUT LEAVE

TO AMEND Defendant Glenn Curro's demurrer to Plaintiff Latasha Myles's third cause of action.

Defendant Glenn Curro shall file

and serve an Answer within 30 days of this order.